OFFICE OF THE ATTORNEY GENERAL VICTIM ASSISTANCE PROGRAM

When the Office of the Attorney General represents the Commonwealth in criminal appeal cases for certain crimes, the Office of Victims Advocacy provides assistance and notification to victims harmed by these crimes. Our office sends notice to victims in qualifying cases and, if requested, law enforcement officials when a conviction is appealed. We provide notification about the appeal, the date and location of oral arguments (if applicable), and the decision of the court. If anyone wishes not to be contacted by our office, we will certainly respect his or her wishes.

The Office of Victims Advocacy has a toll-free telephone number that anyone may use to inquire about a case. If you have questions about a case, you may contact the Office of Victims Advocacy at 1-800-372-2551.

CRIME VICTIMS COMPENSATION BOARD

The Crime Victims Compensation Board may reimburse innocent victims of crime for certain medical and/or psychological expenses, loss of income, and funeral expenses. The Board does not reimburse the value of stolen property. For more information, contact the board at:

Crime Victims Compensation Board
500 Mero St., 2SC1
Frankfort, KY 40601
502-573-2290 or 1-800-469-2120
www.kycc.ky.gov

VICTIM IMPACT STATEMENTS KENTUCKY PAROLE BOARD

Crime victims may also submit a written Victim Impact Statement to the Kentucky Parole Board for consideration prior to making a decision on the release of the prisoner. Victims of Class A, B, or C felonies may meet with the Board and comment about the case. The Office of Victims Advocacy can assist in this application. For further information, contact the Board at:

Kentucky Parole Board
275 East Main Street
P.O. Box 2400
Frankfort, KY 40602
502-564-3620 or 1-800-221-5991

RESOURCES

Kentucky Crime Victim Hotline
Office of Victims Advocacy
Office of the Attorney General
1-800-372-2551 or 502-696-5312

Division of Criminal Appeals
Office of the Attorney General
502-696-5342

Kentucky Association of Sexual Assault Programs
1-866-375-2727 or 502-226-2704

Kentucky Coalition Against Domestic Violence
502-209-5382

Cabinet for Health and Family Services
Child Abuse & Neglect Reporting Hotline
(877) KYSAFE1 (597-2331)

Prevent Child Abuse Kentucky
1-800-244-5373 or 859-225-8879

Victim Information and Notification Everyday (VINE)
1-800-511-1670 or 502-564-5061
vinelink.com/classic/#/home

The Commonwealth of Kentucky does not discriminate on the basis of race, color, religion, sex, national origin, sexual orientation, gender identity or expression, ancestry, age, pregnancy or related medical condition, marital or familial status, disability, veteran status, political affiliation, or genetic information in accordance with state and federal laws.

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OFFICE OF THE ATTORNEY GENERAL
COMMONWEALTH OF KENTUCKY
UNITED WE STAND DIVIDED WE FALL

CRIMINAL APPEALS

Attorney General
DANIEL CAMERON
ag.ky.gov

A message from
ATTORNEY GENERAL DANIEL CAMERON

Dear Kentuckians,

As Attorney General, I am dedicated to protecting and advocating for crime victims and their families.

In this brochure, I have included an overview of the criminal appellate process, along with resources and contact information.

I have also designated a Deputy Solicitor General for Criminal Appeals who stands ready to support you alongside our Office of Victims Advocacy.

If you need additional assistance, please do not hesitate to contact our office by calling 502-696-5300. It is an honor to serve you and our fellow Kentuckians.

Sincerely,

Daniel Cameron
Attorney General



Appellate Court System

A person convicted of a crime may appeal the conviction, claiming the trial proceedings did not comply with the law. A higher court reviews the claimed legal error(s) in the original trial based on the record that was made during the trial. The appellate courts do not receive new or additional evidence or testimony. They determine if there was sufficient evidence and if the trial was conducted properly. The judges who serve on the Supreme Court and the Court of Appeals are elected by popular vote in seven districts across the state. Judges serve for a term of eight years.

The Appellate Process

After a conviction, the trial court schedules a sentencing hearing. If the defendant wishes to appeal the conviction, he or she must file a Notice of Appeal within 30 days of sentencing. The record of the original trial is prepared and certified. Then, the defendant has 60 days to prepare his or her brief, or statement of arguments, as to why the conviction should be reversed.

The Criminal Appeals Division in the Office of the Attorney General is responsible for representing the Commonwealth in criminal appeals. When the defendant's brief is received, the Commonwealth has 60 days to respond to defense arguments. Both sides may be granted extensions of time to prepare their briefs. The appellate court reviews these written arguments. The court may schedule an oral argument in the case, but oral arguments are not heard in every case. There will be no new evidence or testimony at this argument. These arguments are open to the public, and crime victims or interested parties may attend. You can watch a live stream of oral arguments being presented to the Kentucky Supreme Court. If you would like to watch an oral argument via the internet, please go to http://courts.ky.gov/courts/supreme and click on "Supreme Court-LIVE."

Usually, the court issues a decision several months after an oral argument. If the court decides not to hear oral arguments, a decision will be made based on the submitted written arguments or briefs. If the conviction is set aside or reversed, the appellate court may order that a new trial be held or dismiss some or all of the charges. The "losing side" may ask the court to reconsider its decision or appeal that decision to a higher court.

Kentucky Court of Appeals

The Court of Appeals is composed of 14 judges, one of whom is elected by the others as the chief judge. A panel of three judges reviews the criminal cases from the Circuit Courts. These arguments are usually held in Frankfort, but the court may schedule hearings in different locations across the state.

Kentucky Supreme Court

The Kentucky Supreme Court is composed of seven justices, one of whom is elected by the others as the Chief Justice. When a defendant is sentenced by the Circuit Court to 20 years or more, life imprisonment, or death, any appeal of that judgment is taken directly to the Supreme Court, bypassing the Court of Appeals. Additionally, the Supreme Court may also review decisions of the Court of Appeals.

Steps of the Criminal Appellate Process

1. District Court
   Misdemeanors, violations, preliminary criminal procedures
2. Circuit Court
   Felony criminal trials, appeals from District Court proceedings
3. Kentucky Court of Appeals
   Appeals from Circuit Court
4. Kentucky Supreme Court
   Criminal appeals from Circuit Court with sentences of 20 years or more, death, or life imprisonment, and review of Court of Appeals decisions
5. U.S. Federal Courts
   If there is a claim of violation of the rights guaranteed by the United States Constitution, the case may be reviewed by the United States Federal Courts (U.S. District Court, Sixth Circuit Court of Appeals, U.S. Supreme Court). Although many attorneys ask the Supreme Court to review their cases, the U.S. Supreme Court accepts a very small number of cases each year.

Victim Information and Notification Everyday (VINE)

The VINE system provides, upon request, information on the status, location, parole eligibility, housing location, and release of an inmate, including juvenile violent offenders. For more information, call 1-800-511-1670.